

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1141

Introduced by Spivey, 13.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Game and Parks Commission; to amend
- 2 section 81-407, Revised Statutes Supplement, 2025; to create the
- 3 Nebraska Youth Pre-Apprentice Conservation Program; to provide
- 4 powers and duties to the Game and Parks Commission; to create a
- 5 fund; to transfer funds from the Workforce Development Program Cash
- 6 Fund; to harmonize provisions; and to repeal the original section.
- 7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) The Legislature finds that:

2 (a) Every Nebraska youth should have the opportunity to reach their
3 full potential, and some youth require additional guidance and support to
4 reach their goals and make positive changes in their lives through job
5 training and apprenticeships;

6 (b) Conserving and developing natural resources and enhancing and
7 maintaining environmentally important land and water through the
8 employment of Nebraska's opportunity youth is beneficial not only to the
9 youth, by providing education and employment opportunities, but also to
10 the state's economy and environment; and

11 (c) The Nebraska Youth Pre-Apprentice Conservation Program will
12 offer Nebraska a unique opportunity to meet the goals of increasing
13 understanding and appreciation of the environment and supporting
14 opportunity youth to reach their full potential.

15 (2) It is the intent of the Legislature:

16 (a) That Nebraska Youth Pre-Apprentice Conservation Program
17 participants complete participation to be exposed to building
18 transferable employment skills;

19 (b) That the program combines academic, environmental, and job
20 skills training with personal growth opportunities to develop youth who
21 can make substantial contributions as Nebraska workers and residents; and

22 (c) To ensure that the program is self-sustaining with stable and
23 predictable funding and, in pursuit of such goal, that all state agencies
24 look to the program first to have its participants engage in projects
25 that further the mission of the program.

26 **Sec. 2.** For purposes of sections 1 to 6 of this act:

27 (1) Commission means the Game and Parks Commission; and

28 (2) Opportunity youth means a child who (a) has been impacted
29 directly by trauma, including adverse childhood experiences, (b) has had
30 negative contact with law enforcement, or (c) is not experiencing success
31 in school or is in jeopardy of not completing school.

1 **Sec. 3.** (1) The Nebraska Youth Pre-Apprentice Conservation Program
2 is created. The purpose of the program is to employ Nebraska's
3 opportunity youth on projects which contribute to conserving or
4 developing natural resources and enhancing and maintaining
5 environmentally important land and water under the jurisdiction of the
6 commission and the Department of Labor. The program shall combine
7 academic, environmental, and job skills training with personal growth
8 opportunities for the participants. Beginning January 1, 2027, the
9 commission shall administer and maintain the Nebraska Youth Pre-
10 Apprentice Conservation Program in collaboration with other appropriate
11 state agencies.

12 (2) Participants in the Nebraska Youth Pre-Apprentice Conservation
13 Program shall be opportunity youth who are (a) sixteen years of age or
14 older and younger than twenty-one years of age, (b) unemployed, (c)
15 residents of Nebraska, and (d) on probation or supervision or assigned to
16 a diversion program. The commission shall develop a process for
17 opportunity youth to apply to or be selected for the program. Special
18 effort shall be made to select as participants opportunity youth residing
19 in a qualified census tract as defined in section 81-12,240.

20 (3) Participants in the Nebraska Youth Pre-Apprentice Conservation
21 Program shall be paid not less than the minimum wage. Participation in
22 the program shall be for a period of six weeks for each participant.

23 (4) Participants in the Nebraska Youth Pre-Apprentice Conservation
24 Program shall not be considered state employees for any purpose,
25 including, but not limited to, the State Employees Collective Bargaining
26 Act, the State Employees Retirement Act, the Employment Security Law, the
27 state employees group health insurance program and any other group
28 insurance available to state employees, vacation leave, sick leave, or
29 any other paid leave program available to state employees, any other
30 benefits offered to state employees based on their status as state
31 employees, hours of work, rates of compensation, or leave under the

1 federal Family and Medical Leave Act of 1993. This subsection does not
2 apply to crew chiefs and other administrative and supervisory personnel
3 of the program, all of whom shall be employees of the commission.

4 **Sec. 4.** The Game and Parks Commission may adopt and promulgate
5 rules and regulations to carry out sections 1 to 6 of this act and may
6 consult other interested agencies to carry out the Nebraska Youth Pre-
7 Apprentice Conservation Program including, but not limited to, the
8 Department of Labor.

9 **Sec. 5.** On or before December 31, 2027, the commission shall
10 electronically report to the Natural Resources Committee of the
11 Legislature, Appropriations Committee of the Legislature, and Business
12 and Labor Committee of the Legislature on the Nebraska Youth Pre-
13 Apprentice Conservation Program. The report shall include, at a minimum,
14 the number and ages of the participants, the areas in which they reside,
15 the rate of compensation of participants, the number and type of projects
16 in which participants engaged, the significance of those projects to the
17 environment and the economy of the state, and any other matters the
18 commission deems significant for inclusion in the report. The report
19 shall not include any personally identifiable information on any
20 participant.

21 **Sec. 6.** (1) The Nebraska Youth Pre-Apprentice Conservation Program
22 Fund is created. The fund shall consist of transfers by the Legislature
23 and any gifts, grants, bequests, and other contributions to the fund. The
24 fund shall be used by the commission to carry out the Nebraska Youth Pre-
25 Apprentice Conservation Program. Any money in the fund available for
26 investment shall be invested by the state investment officer pursuant to
27 the Nebraska Capital Expansion Act and the Nebraska State Funds
28 Investment Act.

29 (2) The State Treasurer shall transfer seven hundred fifty thousand
30 dollars from the Workforce Development Program Cash Fund to the Nebraska
31 Youth Pre-Apprentice Conservation Program Fund as soon as

1 administratively possible after the effective date of this act, on such
2 dates and in such amounts as directed by the budget administrator of the
3 budget division of the Department of Administrative Services.

4 **Sec. 7.** Section 81-407, Revised Statutes Supplement, 2025, is
5 amended to read:

6 81-407 (1) The Workforce Development Program Cash Fund is hereby
7 created. The fund shall consist of transfers authorized by the
8 Legislature.

9 (2) The Department of Labor shall administer the fund. The fund may
10 be used:

11 (a) To provide workforce development grants;

12 (b) To pay the costs of administering the workforce development
13 grant program;

14 (c) To pay the costs of establishing, assessing, collecting, and
15 maintaining state unemployment insurance tax liability and payments;

16 (d) To pay unemployment benefits if determined necessary by the
17 Commissioner of Labor;

18 (e) To provide labor availability, skills gap, and workforce
19 development studies and reports by the Department of Labor; and

20 (f) For purposes of the Manufacturing Modernization and Workforce
21 Development Pilot Investment Act.

22 (3) Transfers may be made from the fund to the General Fund, ~~or the~~
23 Nebraska Opportunity Grant Fund, or the Nebraska Youth Pre-Apprentice
24 Conservation Program Fund at the direction of the Legislature. Any money
25 in the Workforce Development Program Cash Fund available for investment
26 shall be invested by the state investment officer pursuant to the
27 Nebraska Capital Expansion Act and the Nebraska State Funds Investment
28 Act.

29 (4)(a) As part of the workforce development grant program described
30 in subdivision (2)(a) of this section, the Nebraska Workforce Development
31 Board shall submit grant proposals to the Commissioner of Labor for the

1 commissioner's consideration. The board's proposals shall be submitted by
2 April 30 of each year and shall set forth strategies and initiatives
3 designed to develop the workforce in the state. Each such proposal shall:

4 (i) Include a description of the purpose of the proposed grant and
5 the desired outcome; and

6 (ii) Include a method of measuring success for the proposed grant.

7 (b) The board may submit up to eighteen grant proposals per calendar
8 year.

9 (c) The commissioner may approve, reject, or modify any grant
10 proposal submitted by the board. In the case of a rejection or
11 modification of any grant proposal, the commissioner shall provide
12 written notice of the decision to the board and include the rationale for
13 the rejection or modification.

14 (d) The commissioner shall have the discretion to approve up to
15 three grant proposals per calendar year without the prior approval of the
16 board. If the total of the three proposals exceeds twenty-five percent of
17 the unobligated beginning annual balance of the Workforce Development
18 Program Cash Fund, the commissioner shall submit a report detailing the
19 proposals to the board and to the chairperson of the Appropriations
20 Committee of the Legislature within ninety days after approving such
21 proposals.

22 (e) For purposes of this subsection, Nebraska Workforce Development
23 Board means the state workforce development board authorized by the
24 federal Workforce Innovation and Opportunity Act and established in
25 Nebraska.

26 **Sec. 8.** Original section 81-407, Revised Statutes Supplement, 2025,
27 is repealed.